



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 31, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202104748 (Incident Date: July 31, 2021) regarding Sergeant Shereen Summa, Tax No. 933395 (DADS No. 2022-27365)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that Sergeant Summa's actions do not warrant disciplinary action. In this matter, Sergeant Summa ordered an All Terrain Vehicle (ATV) to be invoiced for safekeeping. The CCRB incorrectly concluded that since the ATV operator, who was on the scene, was not observed actually operating the ATV at the time, the ATV could not be seized.

New York State does not allow for the operation of ATVs unless covered by the proper insurance and, then, only on public land or highways, if such land or highways are specifically designated for ATV use. In this instance, the complainant, by his own statements, had driven to and then parked the ATV in an area which was only accessible through public streets, none of which are clearly designated for ATV use. Notwithstanding the complainant's opinion that the ATV was "street legal," the New York City streets on which the ATV would have been operated are not designated for ATV use. Sergeant Summa correctly directed that the ATV be invoiced for safekeeping and, in fact, the ATV was returned the next day to the complainant once he produced proper documentation for the ATV.

Therefore, based on the foregoing, Sergeant Summa will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Seizure of Vehicle).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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